IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(through Hybrid Mode)
COURT-I

Item No. 4

CP(CAA) No. 45/Chd/Pb/2025
(2nd Motion)

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

Nav Auxichem Pvt. Ltd.
(Through Sh. Ram Murthi, Authorized Signatory)
CIN: U24119PB1994PTC015145
Registered Office at 158, Leather Complex,
Kapurthala Road, Jalandhar City, Punjab-144001
Email-accounts@perfectbelting.com
PAN : AAACN5476A

. . . Petitioner No.1/Transferor Company

AND

Perfect Belts Pvt. Ltd.
(Through Sh. Sugam Gupta, Authorized Signatory)
CIN: U29219PB1996PTC017499
Registered Office at 27, Wariana Industrial Complex,
Kapurthala Road, Jalandhar City, Punjab-144002
Email- sales@perfectbels.com
PAN : AABCP1066F

. . . Petitioner No.2/Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 17.10.2025

CORAM:

SH. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SH. K. BISWAL
HON'BLE MEMBER (J)

PRESENT:

For the petitioner : Mr. Karanveer Jindal, Advocate

Second Motion Notice

1. Proceedings under Sections 230-232 of the Companies Act, 2013 have been instituted.

2. Heard the Ld. Counsel / Authorized Representative of the Petitioner. The First Motion Petition order was passed on 07.05.2025 in CA (CAA) No. 1/Chd/Pb/2025. In terms thereof, the meetings of the Equity Shareholders of both the petitioner companies, secured creditors of petitioner company No.2, and unsecured creditors of petitioner companies No.1 & 2 were dispensed with. There are no secured creditors in Petitioner Company No.1; hence, the question of convening the meeting did not arise. With regard to the meeting of the unsecured creditors of Petitioner Company No.2, the first motion application was allowed subject to individual notices being issued to those unsecured creditors whose outstanding amount exceeded ₹1 lakh each. Details regarding the service of these notices have been filed, indicating that out of 197 unsecured creditors with dues above ₹1 lakh, notices have been served on 193 unsecured creditors, representing more than 99% of the total unsecured amount with dues above ₹1 lakh. Further it is stated in the additional affidavit attached at Annexure-A 21 of the petition that no objection has been received from any of the aforesaid unsecured creditors. In view of the above, there is sufficient compliance with the directions issued in the first motion order.

3. Section 230 (5) of the Companies Act, 2013, and Rule 8 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 provide for the issuance of Notice on such Petitions.

4. Section 230 (5) and the relevant part of Rule 8 read as follows:-

"230. Power of compromise or make arrangements with creditors and members

(5) A notice under sub-section (3) along with all the documents in such form as may be prescribed shall also be sent to the Central

Government, the income-tax authorities, the Reserve Bank of India, the Securities and Exchange Board, the Registrar, the respective stock exchanges, the Official Liquidator, the Competition Commission of India established under sub-section (1) of section 7 of the Competition Act, 2002, if necessary, and such other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement and shall require that representations, if any, to be made by them ***shall be made within a period of thirty days from the date of receipt of such notice, failing which, it shall be presumed that they have no representations to make on the proposals.***

Rule 8

8. Notice to statutory authorities.— ***(1) For the purposes of sub section (5) of section 230 of the Act, the notice shall be in Form No. CAA.3, and shall be accompanied with a copy of the scheme of compromise or arrangement, the explanatory statement and the disclosures mentioned under rule 6, and shall be sent to.- (i) the Central Government, the Registrar of Companies, the Income tax authorities, in all cases; (ii) the Reserve Bank of India, the Securities and Exchange Board of India, the Competition Commission of India, and the stock exchanges, as may be applicable; (iii) other sectoral regulators or authorities, as required by Tribunal.***

(2) The notice to the authorities mentioned in sub-rule (1) shall be sent forthwith, after the notice is sent to the members or creditors of the company, by registered post or by speed post or by courier or by hand delivery at the office of the authority.

(3) If the authorities referred to under sub-rule (1) desire to make any representation under sub-section (5) of section 230, the same shall be sent to the Tribunal within a period of thirty days from the date of receipt of such notice and copy of such representation shall simultaneously be sent to the concerned companies and in case no representation is received within the stated period of thirty days by the Tribunal, it shall be presumed that the authorities have no representation to make on the proposed scheme of compromise or arrangement."

Rule 16

16. Date and notice of hearing.—

(1) The Tribunal shall fix a date for the hearing of the petition, and notice of the hearing shall be advertised in the same newspaper in which the notice of the meeting was advertised, or in such other newspaper as the Tribunal may direct, not less than

ten days before the date fixed for the hearing.

(2) The notice of the hearing of the petition shall also be served by the Tribunal to the objectors or to their representatives under sub-section (4) of section 230 of the Act and to the Central Government and other authorities who have made representation under rule 8 and have desired to be heard in their representation"

5. In view of the above, notice to the authorities specified in Section 230(5) of Companies Act 2013, read with Rule 8 and Rule 16 of the Companies (Companies Arrangements and Amalgamation) Rules 2016 for submitting their representation, if any. Notice to be served by all modes and affidavit evidencing proof of service be filed within 7 days.

6. In addition to the service of notice as above, Petitioner(s) are directed to take steps for issuance of notice in Form CAA3 and to the following:

   a. Regional Director, Northern Region, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Pt. Deendayal Antoyodaya Bhawan, CGO Complex, New Delhi-110 003. to be sent through email address, i.e., rd.north@mca.gov.in.

   b. Notice to the Registrar of Companies Punjab and Chandigarh at Chandigarh, 151, Madhya Marg, 27B, Sector 26, Chandigarh, 160019. be sent through email address, i.e., roc.chandigarh@mca.gov.in.

   c. Notice to The Official Liquidator (Punjab & Haryana) Corporate Bhawan, 1st Floor, Plot No. 4B, Sector-27-B, Madhya Marg, Chandigarh-160 019 be sent through email address, i.e., ol.chandigarh@mca.gov.in.

   d. Notice to the Income Tax Authorities having jurisdiction be sent

through email address, i.e., chandigarh.pccit@incometax.gov.in, office address Pr.CCIT, NWR Address:- Aayakar Bhawan, Sector-17E, Chandigarh.

7. Notice in Form CAA2 is also directed to be published in two prominently circulating national daily newspapers, namely “Business standard” (English) and “Akali” (Punjabi Edition), in terms of Rule 7 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016, and an affidavit evidencing proof of publication be filed.

8. All the authorities on receipt of the notice are directed to file their representation, if any, within 30 days from the date of receipt of the notice. In case no representation is received, it will be presumed that they have no objection to the proposal.

9. List on 02.01.2026.

Sd/-
(SHISHIR AGARWAL)
MEMBER (T)

Sd/-
(K. BISWAL)
MEMBER (J)

Akshit/PBS